Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Planning Commission

Dick Hassberger - Chair ***Sharon Bridges*** - Vice-Chair ***Gary Szczepanski*** - Secretary
Tami McCaslin - Zoning Board of Appeals (ZBA) Liaison
Mike Tobin - Lincoln Township Board of Trustees Liaison

Roger Carey - Zoning Administrator ***Deb Trim*** - Ordinance Enforcement Officer
Deb Sherrod - Recording Secretary

PUBLIC HEARING - 14 December, 2021 - 7:00 p.m. MINUTES

The Public Hearing was called to order by ***Hassberger***, at 7:03 p.m. Members present included: ***Hassberger, Bridges, Szczepanski, McCaslin,*** and ***Tobin.*** Absent were ***Carey*** (excused/Medical), ***Trim*** (excused/Family Issues), and ***Sherrod*** (excused). There were sixteen (16) other persons, present to participate in the Hearing process. ***Dennis Zimmerman*** was present, solely for the purpose of taking and recording minutes, in the absence of ***Sherrod***. ***Hassberger*** led those present in the Pledge of Allegiance.

Hassberger explained the purpose of the Hearing was to receive, from the public, and from interested persons, comments and suggestions regarding the proposed amendment(s) to the current Lincoln Township Zoning Ordinance, specifically Section 20.8 *"Recreational Vehicles as Temporary Dwellings on Vacant Lots",* and Section 20.29 *"Temporary Storage Structures".*

Hassberger further explained the requested protocols for the Hearing as follows:

- Each person wanting to address the Planning Commission, would be allowed to speak, but must address all comments to the Chair. Cross conversations between attendees would not be allowed; and,
- Each person wanting to address the Planning Commission, would be allowed three (3) minutes for their resp. remarks; and,
- If time allowed a person may be allowed to speak a second time; and,
- Persons wishing to have exhibits entered into the Hearing would be allowed to do so.

Exhibits accepted for the Hearing, included:

1. Text, regarding the proposed ***Carey*** amendments to the Zoning Ordinance, Appr. 2 pages in length (labeled as exhibit PH-1)

2. Suggested alternate amendments, including seven (7) "Priorities" and covering appr. 2 ½ pages, from ***Tim Vajcner;*** (labeled as exhibit PH-2)

3. A letter supporting the proposed ***Carey*** Zoning Amendments, along with a brief history of events and meetings leading to these proposals, slightly more than 1 page in length, from ***Phil Blaisdell.*** (labeled as exhibit PH-3)

4. A photograph of a type of Utility Trailor in question, 1 page, submitted by ***Jeff Simons***. (labeled as exhibit PH-4)

Persons offering Comments, Suggestions, and other Testimony, included:

Tim Vajcner, Phil Blaisdell, Jim Ostrowski, Bob Cooley, Jeff Simons,

Steve Bryant, Becky Taylor, Brian Hittan, and ***Fred Witchell***

Comments received from Members of the Public, included:

- ***Carey's*** proposed amendments are an improvement, but could go farther;
- Current zoning is camper "Unfriendly";
- Temporary canopies should be excluded from any regulation;
- Two temporary storage structures should be allowed, and that storage should be defined as for equipment, tools, toys, golf carts, UTV's, motorcycles, bicycles, etc.;
- Temporarily placed Utility Trailers should be excluded from regulation;
- The size (ft^2) should be increased from 120 ft^2, to at least 200 ft^2;
- A Minimum Size should be defined for storage structures, to be counted toward the maximum allowed on a lot;
- Permitting requirements should be eliminated;
- The number of current violations is disappointing, and W.B. Property Owners should be better "stewards";
- In agreement with the proposed ***Vajcner*** suggestions;
- In agreement with the proposed ***Carey*** amendments;
- W.B. persons need to be made aware of violation parameters, and possible fines;
- How would these regulations be enforced in real time?
- Permits give the township, especially the Assessor more knowledge of individual lot improvements, specifically regarding Wells, Septic System and Electrical installation;
- Violations and Enforcement need more "Teeth";
- Approve of 2-per-lot Camper limitations, and accompanying temporary structures;
- How many campers typically appear during the camping season?
- There are appr. 248 campers left on-site during the camping season;
- How many Property Owners are there in Total ?

Having appeared that every person wanting to speak, had that opportunity, ***Hassberger,*** then closed the comment period and the Public Hearing at 7:31 p.m.

Planning Commission – Regular Meeting - Minutes

Hassberger convened the Regular Monthly Meeting of the Lincoln Township Planning Commission, at 7:32 p.m.

A **Motion** by ***Tobin*** was made to Approve the Secretary's Report (Minutes) of the November 09, 2021 Regular Meeting of the Planning Commission. **Second** by ***Bridges***. The **Motion Carried – Without Objection.**

Permit and Staff reports, had been provided for P.C. Members in advance, and included:

- Building # 1 5 (Structures, Electrical, Plumbing, Mechanical) Permits; (labeled as Exhibit PC-1)
- Building # 2 (Wells and Septic Systems) Permits (labeled as Exhibit PC-2)
- Zoning Administrator Report (labeled as Exhibit PC-3)
- Ordinance Enforcement Officer Report (labeled as Exhibit PC-4)

A **Motion** by ***Bridges*** was made to accept the Permit and Staff Reports as presented. **Second** by ***McCaslin.*** The **Motion Carried – Without Objection.**

Hassberger requested additions or deletions from the Agenda. The Agenda was **Approved by Consensus.**

Hassberger opened a Public Comment Period:

- ***Bob Cooley*** presented and reviewed a letter from ***Tim Boos*** – the current President of the White Birch Board of Directors, describing the results of a survey, recently conducted, of White Birch Property Owners, regarding the question of the number of campers and other types of RV's that may be allowed on vacant lots, in White Birch. (labeled as Exhibit PC-5)

There was no other Public Comment, offered, and the Comment Period was closed.

Old Business

Hassberger opened discussion among the Planning Commission Members, regarding the Proposed Amendments to Section 20.8 and Section 20.29 (i.e., the ***Carey*** proposed amendments). P.C. Members offered insight and comments, including:

- The proposed amendments are "more than fair";
- Agree with excluding canopy restrictions;
- W.B. Covenants & Restrictions are more strict that Township Zoning;
- W.B. was originally intended to be a gated community with upscale Housing Plans and unique amenities;
- W.B. was not intended to be a campground;
- Economically, revenues from W.B. are generated by Homeowners, not campers;
- Encouraging campers is not in the best interest of W.B. or Lincoln Township;
- Would like to see (and support) a reduction of "clutter" on Residential Lots;
- Why not store utility trailers in one of the two storage areas provided by W.B.
- The R2-A Zoning District could and should be extinguished, and the Township's regulation of limiting a camper placement for 30 days could be revisited;
- Any amendment to allow more camping is not what was originally intended by the W.B. Platters;
- Permitting would result in better tracking and better control of camper placement;
- Permitting would allow for better compliance of Set-backs, Unlicensed vehicles;
- Should a permit ever be denied, such as with a violation of Set-backs, etc.?
- Amendments would allow W.B. to be a bit more camper-friendly, with regard to utility trailer, temporary storage structures, and canopies;

- A fee structure should be developed that covers administrative costs, only, with no additional fee for temporary structures.
- W.B. has two (2) Storage areas….1 with electrical service and 1 without electrical.

Hassberger suggested delaying the beginning of the Master Plan Review until the next meeting. There was NO vote to Table, but the members of the P.C. agreed by consensus.

New Business

A **Motion** was made by ***Bridges*** to approve Zoning Ordinance Section(s) 20.8 and 20.29, and forward them to the Lincoln Township Board for Review and further Action. The **Motion was Seconded** by ***McCaslin.***

Roll-Call Vote:	Yes	No	Abstain	Absent
Hassberger	[x]	[ ]	[ ]	[ ]
Bridges	[x]	[ ]	[ ]	[ ]
Sczcepanski	[x]	[ ]	[ ]	[ ]
Tobin	[x]	[ ]	[ ]	[ ]
McCaslin	[x]	[ ]	[ ]	[ ]
	5 Yeas	**0 Nays**	**0 Absent**	**0 Abstaining**

The Motion Carried, Unanimously

Tobin provided a Guideline, entitled: *"Two Approaches to Short-Term Rental Legislation",* to be discussed at a future meeting. (labeled as Exhibit PC-6)

There was no other New Business. The next Regular Meeting of the Planning Commission will be held on Tuesday, 11 January, 2022, at 7:00 p.m.

A **Motion** was made by ***Bridges*** to Adjourn the meeting. There was a **Second** by ***Tobin.*** The **Motion Carried, without objection**, and the meeting was adjourned at 7:53 p.m.

Respectfully submitted,

Dennis Zimmerman
Substitute Recording Secretary

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Attachment #1

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9538 website: www.lincolntwp.com e-mail: mcarey55@charter.net
Roger Carey **-** Zoning Administrator

Zoning Administrator Report
November 2021

Zoning Applications

1. 11-5-1 received an application for a roof over deck at 475 Arthur Rd. approved
2. 11-3-21 received an application for a roof top solar installation at 4450 Mockingbird Circle. Approved
3. 11-12-21 received an application for a new larger deck at 2805 W. Lake George Dr. approved

Ordinance Complaints

1. 11-19-21 received a complaint of a fence in front yard exceeding allowed height at 436 W. Shingle Lake Dr. after researching, this fence was put in in 2002 and our zoning at the time had height limits for the back and side lots but not for the front yard. Front yard limits came in 2003, therefore this fence is non-conforming legal.
2. 11-19-21 received a complaint of a recreational vehicle on vacant lot, White Birch, lot # 286.
3. 11-19-21 received a complaint of an accessory structure on vacant lot, white birch, lot # 563. Dismissed
4. 11-19-21 received a complaint of an accessory structure on vacant lot, white birch, lot # 975.
5. 11-19-21 received a complaint of an accessory structure on vacant lot, white birch, lot # 1000.
6. 11-19-21 received a complaint of an accessory structure on vacant lot, white birch, lot # 1001.
7. 11-19-21 received a complaint of an accessory structure on vacant lot, white birch, lot # 1009.

8. 11-19-21 received a complaint of a recreational vehicle on vacant lot, White Birch, lot # 1152.
9. 11-19-21 received a complaint of an accessory structure on vacant lot, white birch, lot # 1153.
10. 11-19-21 received a complaint of a recreational vehicle on vacant lot, White Birch, lot # 1154.
11. 11-19-21 received a complaint of a recreational vehicle on vacant lot, White Birch, lot # 1306. Dismissed
12. 11-19-21 received a complaint of a recreational vehicle on vacant lot, White Birch, lot # 1308.
13. 11/26/21 filed a complaint of section of deck violating setback at 434 W. Shingle Lake Dr. second notice

Attachment #2

Lincoln Township
P.O. Box 239
Lake George, MI 48633

November Ordinance Report
Debra Trim - Ordinance Enforcement Officer
989-588-9841 ext. 5

Complaint 112 Alley St 10-29-21 no work done, sent second and final notice. 11-20-21 drove by and the property has been cleaned. Resolved.

Complaint 2126 W Jefferson Rd 10-13-21 have received numerous complaints. 10-27-21 drove by took pictures and sent letter 10-29-21. 11-20-21 drove by property ¾ done, sent letter 11-29-21 explaining what remained to be finished. On going.

Complaint 2104 W Jefferson Rd 10-27-21 large pile of construction debris by road. 10-29-21 drove by took pictures, 10-31-21 sent letter. 11-29-21 drove by only half the property is cleaned. 11-29-21 sent letter explaining what was still required. On going.

Complaint 648 W Shingle Lk Dr Tree damage, roof not tarped properly, animals getting into house, large brush pile next house. Drove by took pictures and sent letter 11-22-21. Owner did try to contact me when I was not available, we have exchanged e-mails and will follow up with contact by phone. On going.

Attachment #3

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9841 website: www.lincolntwp.com e-mail: bor@lincolntwp.com

Central Michigan District Health Department

815 N. Clare Ave. -- Suite B Harrison, MI 48625 [989] 539-6731 ext.3

On-Site Water Well & Sewage Disposal System Permits

November, 2021 Summary

(Address)	(Parcel Number)	(Type)	(Permit Number)	(Final Insp.)
4700 Oak Run	010-720-731-00	Well	SWEH-BZ8HHR	07-06-21
4277 Hemlock Lane	010-746-012-00	Well	SACS-BZSMAT	06-10-21
1961 Arbor Dr.	010-840-015-00	Septic	SWEH-C2QM5P	not final
90 W. Hatton	010-025-200-03	Septic	SWEH-C2ALHZ	not final
90 W. Hatton	010-025-200-03	Well	SWEH-C2ALB9	06-10-21
5478 Wolf Lane	010-680-288-00	Well	SACS-BQNQUL	05-25-21
3540 Tice Trail	010-016-100-09	Well	SACS-C5AR2X	09-22-21

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Clare County Community Services – Building Department [989] 539-2761 www.clareco-building.net

Permits Issued for November, 2021

(Permit Number)	(Parcel Number)	(Address)	(Work Description)
PP21-0094	010-032-300-18	5951 Bringold Ave.	Plumbing – Sewage Injectors & Sump
PP21-0102	010-746-274-00	4569 Red Fox Run	Plumbing – Manufactured Home
PM21-0276	010-746-287-00	4522 Red Fox Run	Mechanical – Gas Piping
PM21-0283	010-460-019-00	372 W. Shingle Lake Dr.	Mechanical – Gas Piping
PM21-0284	010-460-014-01	210 S. Bringold Ave.	Mechanical – Gas Piping
PM21-0298	010-030-300-11	4701 Hemlock	Mechanical – Gas Piping
PB21-00389	010-680-301-00	5076 Wolf Lane	Building – Porches & Decks
PB21-00532	010-746-274-00	4569 Red Fox Run	Building – Manufactured Home
PB21-00535	010-030-300-05	5740 Browns Rd.	Building – New Roof
PB21-00557	010-267-008-00	160 Lake Rd.	Building – New Roof
PB21-00563	010-008-100-13	654 Lake St.	Building – New Roof
PB21-00568	010-267-011-00	183 Newsom St.	Building – New Roof
PB21-00578	010-298-006-00	2805 W. Lake George Dr.	Building – Final Inspection
PB21-00588	010-008-300-26	698 Forest	Building – Pole Barn
PE21-00568	010-340-007-21	897 Oak Dr.	Electrical – Service Upgrade and Fixtures
PE21-00593	010-460-019-00	372 W. Shingle Lake Dr.	Electrical – Generator Transfer Switch
PE21-00594	010-460-014-01	210 S. Bringold Ave.	Electrical – Generator Transfer Switch
PE21-00610	010-621-005-00	980 Forest	Electrical – Generator
PE21-00621	010-747-366-00	4721 Teaberry Lane	Electrical – Pole Barn
PE21-00637	010-030-300-11	4701 Hemlock	Electrical – Generator Transfer Switch
PE21-00643	010-007-402-72	400 S. Bringold Ave.	Electrical – Commercial Gas Pump

PE21-00648	010-021-200-12	3260 Bungo Tr.	Electrical – Service upgrade
PE21-00653	010-746-274-00	4569 Red Fox Run	Electrical – Modular Home – Res. Wiring
PE21-00659	010-380-019-90	302 Silver Lake Dr.	Electrical – Generator Sub-panel

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